

substantial procedural reform while retaining a distinction between jury and nonjury issues and leaving substantive rights unchanged.¹² Since in the federal courts equity has always acted only when legal remedies were inadequate,¹³ the expansion of adequate legal remedies provided by the Declaratory Judgment Act and the Federal Rules necessarily affects the scope of equity. Thus, the justification for equity's deciding legal issues once it obtains jurisdiction, and refusing to dismiss a case, merely because subsequently a legal remedy becomes available, must be re-evaluated in the light of the liberal joinder provisions of the Federal Rules which allow legal and equitable causes to be brought and resolved in one civil action.¹⁴ Similarly the need for, and therefore, the availability of such equitable remedies as Bills of Peace, *Quia Timet* and Injunction must be reconsidered in view of the existence of the Declaratory Judgment Act as well as the liberal joinder provision of the Rules.¹⁵ This is not only in accord with the spirit of the Rules and the Act

¹² See 28 U. S. C. § 2072; Fed. Rules Civ. Proc., 39 (a), 57. See also *Stainback v. Mo Hock Ke Lok Po*, 336 U. S. 368, 382, n. 26; *United States v. Yellow Cab Co.*, 340 U. S. 543, 555-556.

¹³ See 36 Stat. 1163, derived from Act of Sept. 24, 1789, § 16, 1 Stat. 82. This provision, which antedates the Seventh Amendment, is discussed in 5 Moore, Federal Practice, 32. See, e. g., *Hipp v. Babin*, 19 How. 271, 277-278; *Insurance Co. v. Bailey*, 13 Wall. 616, 620-621; *Grand Chute v. Winegar*, 15 Wall. 373; *Buzard v. Houston*, 119 U. S. 347, 351-352.

¹⁴ See Fed. Rules Civ. Proc., 1, 2, 18. Cf. *Prudential Ins. Co. v. Saxe*, 134 F. 2d 16, 31-34; Morris, Jury Trial Under the Federal Fusion of Law and Equity, 20 Tex. L. Rev. 427, 441-443.

¹⁵ See 1 Pomeroy, Equity Jurisprudence (5th ed.), §§ 251¾, 254, 264 (b); 5 Moore, Federal Practice, 32; but cf. *id.*, 209-211. See also, Note, The Joinder Rules and Equity Jurisdiction in the Avoidance of a Multiplicity of Suits, 12 Md. L. Rev. 88. Of course, unless there is an issue of a right to jury trial or of other rights which depend on whether the cause is a "legal" or "equitable" one, the question of adequacy of legal remedies is purely academic and need not arise.